



POLICE DEPARTMENT

July 28, 2009

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Kenneth Douglas
Tax Registry No. 906146
Fleet Services
Disciplinary Case Nos. 82032/06 & 83759/08

The above-named member of the Department appeared before me on February 26, 2009, and March 31, 2009, charged with the following:

Disciplinary Case No. 82032/06

1. Said Police Officer Kenneth Douglas, assigned to 90 Precinct, while off-duty, on or about April 9, 2005, at about and between 2157 hours and 2218 hours, at a location known to the Department, [REDACTED] County, after being involved in an unusual police occurrence did fail to request a patrol supervisor, precinct of occurrence, as required.

P.G. 212-32, Page 1, Paragraph 2 – COMMAND OPERATIONS

2. Said Police Officer Kenneth Douglas, assigned as indicated in Specification #1, on or about the date, and location indicated in Specification #1, at about 2218 hours, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that after being involved in a police incident, said Officer failed to immediately identify himself as a member of the New York City Police Department to responding officers.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

3. Said Police Officer Kenneth Douglas, assigned as indicated in Specification #1, on or about the date, and location indicated in Specification #1, at about 2218 hours, did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department, in that after being involved in an off-duty domestic incident, said Officer failed to notify the on-duty responding officers that the other participant in the incident was a member of service.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS

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4. Said Police Officer Kenneth Douglas, assigned as indicated in Specification #1, on or about the date, time, and location indicated in Specification #2, while off-duty, did wrongfully and without just cause prevent or interfere with an official Department investigation, to wit: while on-duty officers were investigating a domestic incident in which Officer Douglas was a participant, said Officer failed to provide on-duty responding officers with his pedigree information.

P.G. 203-10, Page 1, Paragraph 2 – IMPEDE A DEPARTMENT INVESTIGATION

Disciplinary Case No. 83759/08

1. Said Police Officer Kenneth Douglas, assigned to the 90th Precinct, while off-duty and on or about November 21, 2007, at a location known to this Department, in ██████ County, did wrongfully and without just cause, cause physical injury to another person, known to this Department, in that said Officer did punch and strike said individual.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
N.Y.S. Penal Law Section 120.00(1) – ASSAULT IN THE THIRD DEGREE

2. Said Police Officer Kenneth Douglas, assigned to the 90th Precinct, while off-duty and on or about November 21, 2007, at a location known to this Department, in ██████ County, did knowingly act in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen years old in that said Officer did punch and strike an individual known to the Department in front of a child less than seventeen years old.

P.G. 203-10, Page 1, Paragraph 5 – GENERAL REGULATIONS
N.Y.S. Penal Law Section 260.10 – ENDANGERING THE WELFARE OF A
CHILD

The Department was represented by Pamela Naples, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Disciplinary Case No. 82032/06

The Respondent is found Guilty.

Disciplinary Case No. 83759/08

The Respondent is found Guilty.

SUMMARY OF EVIDENCE PRESENTED

Introduction

It is not disputed that the Respondent and Police Officer Trina Daniels had a long term relationship but are no longer living together. They resided together from 2000 until November 21, 2007, at [REDACTED], along with the three children they have had together and Officer Daniels' daughter [REDACTED].

The Department's Case

The Department called Police Officer Trina Daniels, Sergeants Robert O'Hare and Patrick McCarthy, and Captain William Schweitzer as witnesses, and offered the statement of [REDACTED].

Police Officer Trina Daniels

Police Officer Trina Daniels testified that after work on the evening of April 9, 2005, she went out with friends for about five hours. When she returned home, she took the mail out of the mailbox and then entered the residence. The Respondent was inside

with their children and her [REDACTED] [REDACTED]. The Respondent knocked the mail out of her hand. She then left the residence. She did not call 911. When she was asked whether, before she left, she and the Respondent had discussed anything, she answered, "I don't recall." When she was asked whether the Respondent had tried to stop her from leaving or whether anything else had happened, she answered, "I don't think so." She returned home the next morning and learned that her [REDACTED] [REDACTED] had called the police although she did not know why she had called 911.

She recalled that on November 21, 2007, after work she went to a bar. The Respondent "eventually came to the bar." When she was asked whether, before she left the bar, she and the Respondent had discussed their [REDACTED], she answered, "I don't think so." She left the bar after about an hour and went to pick up their [REDACTED] at school. She had learned that [REDACTED] was still at school because she [REDACTED] had called her. She picked up [REDACTED] at school and then went home. When she arrived home, the Respondent was not there. When he arrived home, she was in the kitchen. He came in and they argued "about my [REDACTED] not picking him up." She testified that the Respondent pushed her with two hands. She suffered "a minor scrape" on her arm. Her [REDACTED] called the police and officers responded. They all went to the [REDACTED] precinct where the Respondent was arrested. Her [REDACTED] was somewhere upstairs, not in the kitchen, during the incident on November 21, 2007.

On cross-examination, she testified that someone who is upstairs cannot see into the kitchen area. On April 9, 2005, when she returned home, she was on the first floor engaged in conversation with the Respondent for no more than 20 minutes before she left. When she returned home the next day, her [REDACTED] [REDACTED] told her that she had

called the police. Daniels testified that she was "pretty sure" that [REDACTED] was asleep upstairs during the time she was home before she left. In April, 2005, [REDACTED] was [REDACTED] years-old. She was not present when her [REDACTED] called 911. She left the residence 15 to 20 minutes after she arrived home.

When she was asked whether the Respondent had punched her on November 21, 2007, she answered, "I don't recall." She recalled that when the Respondent pushed her in the chest, she did not fall down but she backed into a table. Her right elbow struck the table causing a minor scrape on her elbow.

Sergeant Robert O'Hare

Sergeant Robert O'Hare, a 13-year member of the service who is assigned to Patrol Borough Brooklyn North, recalled that in January, 2006, he was assigned to investigate a domestic incident regarding the Respondent and Police Officer Trina Daniels that occurred on November 21, 2007. In reviewing the investigative file, he noticed that Police Officer Daniels had told a Department interviewer that on April 9, 2005, uniformed officers had responded to the residence where she and the Respondent lived together which was located within the confines of the [REDACTED] Precinct.

Sergeant O'Hare ascertained that the uniformed police officers who responded on April 9, 2005, had noted in their activity logs that they had prepared a Domestic Incident Report (DIR). Sergeant O'Hare obtained this DIR [Department Exhibit (DX) 1] [This DIR states that on April 9, 2005, on-duty police officers assigned to the [REDACTED] precinct, sector N, Beat 6, responded to a radio transmission regarding Sprint Report No. 14499, and arrived at [REDACTED] at 2215 hours. The "Narrative

of the Incident" section states that: "At T/P/O officers did respond to above loc (location) where C/V left said loc. Other residents refused to make a rpt (report) and were un-cooperative."]

Sergeant O'Hare conducted official Department interviews of the Respondent and Officer Daniels. At his official Department interview, the Respondent acknowledged that uniformed police officers had responded to his residence on April 9, 2005. He told O'Hare, "I believe that I ID'd myself as a police officer" to the officers who responded to the residence.

On cross-examination, Sergeant O'Hare testified that Officer Daniels had so little recall of the April 9, 2005 incident that she initially told him that the incident had occurred during February. He confirmed that his commanding officer had recommended that Officer Daniels also receive charges. He explained that the term "unfounded" means an alleged event did not happen.

Sergeant Patrick McCarthy

Sergeant Patrick McCarthy recalled that on November 21, 2007, the police officers who had responded to the Respondent's residence requested that he, as patrol supervisor, respond to the location. When he arrived, the Respondent was outside the residence and Daniels was inside. He went inside and observed that Daniels had "a couple of scratches on her face." The parties were removed to the [REDACTED] Precinct. There, he observed that Daniels also had "slight swelling" to her face. Sergeant McCarthy, as the arresting officer, prepared arrest charges against the Respondent for Assault in the third degree and for Harassment in the second degree.

On cross-examination, Sergeant McCarthy testified that Daniels refused medical attention. No photos were taken of Daniels' face and her facial injuries were not noted in the Precinct's Command Log.

Captain William Schweitzer

Captain William Schweitzer recalled that on November 21, 2007, he was assigned as the Duty Captain for Brooklyn North. He received a call from then-Lieutenant Scott Henry requesting that he respond to the [REDACTED] Precinct regarding an investigation of an off-duty domestic incident. The Respondent and Police Officer Trina Daniels were present at the [REDACTED] Precinct. He observed that the Respondent had "two or three minor scratch marks to his face" and he observed on Daniels "swelling throughout her whole face" including "some discoloration about the face." He recalled that her face "continued to swell and get worse" that night. He directed either a lieutenant or a sergeant to take photos of Daniels' face.

Also present inside the [REDACTED] Precinct was Daniels' [REDACTED]. Captain Schweitzer told Daniels that he was going to interview [REDACTED] and he asked her what adult she wanted to be present at the interview. Daniels' PBA delegate Police Officer Patricia Farrell agreed to be present during the tape-recorded interview of Tykasia.

On cross-examination, Captain Schweitzer testified that he never went to the residence where this off-duty domestic incident took place but that he was present when Sergeant O'Hare conducted an official Department interview of Officer Daniels who was represented at the interview by her PBA delegate Officer Farrell.

[REDACTED]

At her tape-recorded interview (DX 2) conducted inside the [REDACTED] Precinct, [REDACTED] ([REDACTED]) told Captain Schweitzer that on November 21, 2007, the Respondent "came in" and asked her where her mother was. She told him that her mother was in the kitchen. He then walked into the kitchen and said "something like why didn't you pick up the [REDACTED] or something like that. So then they just started arguing, he said some words, it started getting louder. So I told my other siblings to come on, let's go upstairs." Her one-year-old half [REDACTED] "was just standing there so I went to go her up and on the way upstairs I heard a boom."

She then heard her mother saying, "Get off of me. Get off of me." She then heard her mother saying "something about she can't breathe." She "got scared." She called 911 and asked for the police to come to her house.

When she was asked if she saw what was going on, she stated that she "went downstairs." When she was asked, "And what exactly did you see?" she answered, "He punched her." When she was asked, "And after that what did you do?" she answered, "My mother told me to go upstairs and I went upstairs." She added that she "gave the phone to my mother, because my aunt wanted to speak to my mother."

When she was asked why she had telephoned 911, she answered, "Because I was scared that he may hurt her or do something worse" because "I heard like a boom, like if somebody fell and then I heard her saying she can't breathe." When she was asked, "Did you see where he punched her?" she answered, "In the face, like I can't exactly know in the face, but I seen him punch her in the face."

The Respondent's Case

The Respondent testified in his own behalf.

The Respondent

The Respondent recalled that on the evening of April 9, 2005, when he arrived home, Daniels was not there but her [REDACTED] and his eldest [REDACTED] were there. He waited "a couple hours" for Daniels to come home. She did not arrive until after it was dark out and their [REDACTED] were getting ready to go to bed. She appeared to be intoxicated. He and Daniels engaged in a verbal argument for ten minutes about "her coming home on time to take care of the [REDACTED]" Daniels ended the argument by storming out of the residence.

Later that night, police officers knocked on his front door and he opened it. The officers told him that they were there because "a minor" had called 911 and reported "a domestic dispute." The Respondent testified that he told the responding officers that he "was on the job" and that his [REDACTED] ([REDACTED]) was upstairs and that she may have been the minor who had called 911. The Respondent testified that he called for his [REDACTED] to come down and that she came halfway down the stairs. She was in her pajamas. He asked her in front of the officers whether she had called 911. His [REDACTED] told the officers that she had heard him and Daniels arguing and she had called 911. The officers asked him where Daniels was and he told them that she had left. He did not tell the officers that Daniels was a member of the service because he did not see a need to tell the officers that because their argument had been verbal only. The officers stayed there about two minutes and then left. The officers did not prepare any

paperwork in front of him. He later learned that they had prepared a DIR. Daniels returned home the following day.

He testified that on November 21, 2007, he received a phone call from a school safety guard that his [REDACTED] was still at school because no one had come to pick him up. Normally, it was Daniels' job to pick up [REDACTED] at school. When he asked her why she had not picked up [REDACTED] at school on time, she told him that she was at a local bar. When Daniels arrived home with [REDACTED] she was intoxicated. They argued in the kitchen area about her failure to pick up [REDACTED] at school on time. When he was asked if during the argument there was any physical contact between him and Daniels, he answered, "I don't recall physical contact." He denied that he had punched her in the face. His [REDACTED] and his [REDACTED] were in the house but not in the kitchen. He was later arrested. In May, 2008, the criminal charges were adjourned in contemplation of dismissal (ACD).

On cross-examination, regarding the incident on April 9, 2005, the Respondent acknowledged that he was aware that family disputes are covered by the Patrol Guide provision governing reporting off-duty incidents and calling for a supervisor to respond. The Respondent testified that he did not call for a supervisor to respond to his residence because his dispute with Daniels had been no more than a verbal argument. The Respondent testified that in addition to telling the responding officers that he was "on the job," he also showed them his Department ID card. The Respondent testified that he told the responding officers that Daniels was his [REDACTED] but he did not tell them that she was a member of service.

Regarding the incident on November 21, 2007, the Respondent acknowledged that he went to the bar where Daniels was and that he had a drink there. When he was

asked whether he was upset when he found out that Daniels had not picked up his [REDACTED] at school, he answered that he was annoyed. When he was asked if the argument between he and Daniels had escalated to a physical altercation, he answered, "I don't believe so." When he was asked if he had shoved Daniels, he answered, "I don't recall shoving her." The Respondent was confronted with answers he gave at his official Department interview on July 16, 2008. At his official Department interview, when he was asked, "What was the physical part of the dispute?" he answered, "I guess it was a shove."

On redirect examination, the Respondent was directed to an answer he gave at his official Department interview on July 16, 2008. When he was asked, "How was it physical?" he had answered, "I placed my hands on her to hold her back," but that he had done so only in self-defense to prevent her from assaulting him.

FINDINGS AND ANALYSIS

Disciplinary Case No. 82032/06

Specification No. 1

It is charged that the Respondent on April 9, 2005, after being involved in an unusual police occurrence, failed to request a patrol supervisor, precinct of occurrence, as required. The Respondent acknowledged that on duty, uniformed police officers arrived at the front door of his residence on April 9, 2005, and told him that they were responding to a 911 call placed by a minor. The Respondent further acknowledged that he did not request that a patrol supervisor respond to his residence. The Respondent asserted that he had not been involved in an unusual police occurrence because he and Daniels only had a verbal argument. However, the arrival of on duty, uniformed police

officers at the home of an off-duty member for the purpose of investigating a complaint made by someone living in the member's home itself constitutes an unusual police occurrence for the off-duty member and triggers the requirement to request the response of the patrol supervisor. I find that the Respondent's failure to request a patrol supervisor is consistent with his failure to tell to the responding officers that he and Daniels were members of the Department (discussed below).

The Respondent is found Guilty.

Specification No. 2

It is charged that the Respondent engaged in conduct prejudicial to the good order, efficiency and discipline of the Department, in that after being involved in a police incident, he failed to immediately identify himself as a member of the Department to responding officers. The Respondent testified that he told the responding officers that he was "on the job," that he also showed them his Department ID card, and that he told them that his stepdaughter was upstairs and that she may have been the person who placed the call to 911. The Respondent's claims are not supported by the Domestic Incident Report (DX 1) that was contemporaneously prepared and filed by the responding officers. The "Narrative of the Incident" section of the DIR states that "officers did respond to above loc (location) where C/V left said loc. Other residents refused to make a rpt (report) and were un-cooperative."

If the Respondent had actually identified himself as a member of the service (MOS), the responding officers were required to record that fact on the DIR. Also, the Respondent acknowledged that the officers told him that they were responding to a 911

call “for a domestic dispute” and that the call was made by “a minor” who cited a specific address. Moreover, the Respondent was the person who answered their knock on the door of that location. As a result, if the Respondent had actually identified himself as a police officer, the officers would have been required to notify their patrol supervisor. Finally, if the Respondent actually had, as he claims, asked [REDACTED] in front of the officers whether she had called 911 and she had stated that she had heard him and Daniels arguing, it is likely that the officers would have recorded what [REDACTED] had said in the “Narrative of the Incident” section of the DIR.

Since “the general presumption is that no official...will do anything contrary to his official duty or omit anything which his official duty requires to be done,”¹ the entries the responding officers made in the DIR are presumptively accurate. I find that the Respondent’s self-serving claims regarding what he assertedly told the responding officers do not constitute “substantial contrary evidence”² and, therefore, do not negate the evidentiary presumption of regularity that applies to the responding officers’ acts.

The Respondent is found Guilty.

Specification No. 3

It is charged that the Respondent wrongfully engaged in conduct prejudicial to the good order, efficiency and discipline of the Department, in that after being involved in an off-duty domestic incident, he failed to notify the on-duty responding officers that the other participant in the incident, Daniels, was a member of service. I find the Respondent

¹ Richardson on Evidence, section 72.

² Ibid.

Guilty because the Respondent acknowledged that he never told the responding officers that Daniels was a member of service.

The Respondent is found Guilty.

Specification No. 4

It is charged that the Respondent wrongfully and without just cause prevented or interfered with an official Department investigation in that, while on-duty officers were investigating a domestic incident in which he was a participant, he failed to provide the responding officers with his pedigree information. As discussed under Specification No. 2, the Domestic Incident Report (DX 1) sufficiently establishes that the Respondent provided no personal information, not even his name, to the responding officers. He had a motive for not doing so in that if he had provided personal information to the officers they might have ascertained that he was an MOS, a fact that he was trying to conceal.

The Respondent is found Guilty.

Disciplinary Case No. 83759/08

Introduction

Initially, I find that I cannot credit the testimony of either Daniels or the Respondent regarding their altercation on November 21, 2007, because their respective testimonies regarding physical contact during this altercation are completely inconsistent with the injuries Captain Schweitzer observed on their faces. The Respondent denied that he had touched Daniels' face and Daniels asserted that all she could recall was that the Respondent had pushed her in the chest. In contrast, Captain Schweitzer recalled that

shortly after their altercation he observed as many as three scratch marks on the Respondent's face and he observed that Daniels had "swelling throughout her whole face" and that her face continued to swell and "get worse" as the night progressed.

Specification No. 1

It is charged that the Respondent wrongfully and without just cause punched and struck Daniels causing her to suffer physical injury.

This charge cites to both Patrol Guide section 203-10 and Penal Law Section 120.00(1), the crime of Assault in the Third Degree. The record establishes that the Respondent is guilty of violating the Patrol Guide section, but not the Penal Law Section.

Penal Law Section 10.00(9) defines "physical injury" as "impairment of physical condition or substantial pain." When Daniels was asked whether the Respondent had punched her on November 21, 2007, she answered, "I don't recall." Although she asserted that the Respondent had pushed her in the chest causing her right elbow to strike the table resulting in a minor scrape on her elbow, she did assert that she felt substantial pain in her elbow. Although I credit Captain Schweitzer's testimony that he observed swelling on Daniel's face, this observation, standing alone, does not sufficiently establish that Daniels' physical condition was impaired or that she felt substantial pain in her face.³ Thus, the Department did not prove that Daniels suffered physical injury as defined in the Penal Law.

However, the Respondent is guilty of violating Patrol Guide section 203-10 because the record establishes that the Department presented sufficient evidence to prove that the Respondent punched Daniels in the face.

³ See People v. Sherrod, 132 AD2d 683, 518 NYS2d 53 (2nd Dept 1987).

[REDACTED] told Captain Schweitzer that she saw the Respondent punch her mother in the face. It is not disputed that [REDACTED] was present inside the residence when Daniels and the Respondent engaged in their altercation and the only evidence in the record that she could not have seen what happened between them is the testimony of Daniels and the Respondent, which I have discredited. Both Sergeant McCarthy, who responded to the scene, and Captain Schweitzer, who was present when Daniels was interviewed at the 79 Precinct, had the opportunity to look at Daniels' face soon after this incident. Each of these supervisors independently testified that Daniels' face showed swelling. This strong independent evidence corroborates [REDACTED]'s hearsay statement that she saw the Respondent punch her mother in the face and the record contains no alternative explanation for how Daniels' face became swollen and discolored.

The Respondent is found Guilty of violating Patrol Guide section 203-10.

Specification No. 2

It is charged that the Respondent knowingly acted in a manner likely to be injurious to the physical, mental or moral welfare of a child less than seventeen years old in that he punched and struck Officer Daniels in front of [REDACTED] a child less than seventeen years old. It is not disputed that [REDACTED] was a child less than seventeen years old on November 21, 2007, and, under Specification No. 1, I have found that [REDACTED] saw the Respondent punch her mother in the face on that date. Since the Respondent knowingly acted in a manner likely to be injurious to the mental welfare of [REDACTED], the Respondent is found Guilty.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). The Respondent was appointed to the Department on February 28, 1994. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

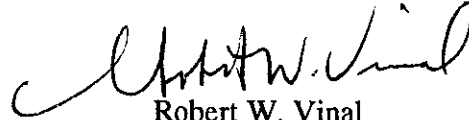
In formulating a penalty recommendation, I have taken into consideration the Respondent's prior formal disciplinary record which reflects that he pleaded guilty to having committed on-duty misconduct in 1997. This guilty plea resulted in the imposition of a period of one year on dismissal probation which expired just over four years before he committed the off-duty misconduct he has been found guilty of here under Disciplinary Case No. 82032/06.

Since these two cases mark the time that the Respondent has been found guilty of having committed misconduct while off-duty, I recommend that the Respondent be DISMISSED from the New York City Police Department, but that the penalty of dismissal be held in abeyance for a period of one year pursuant to section 14-115 (d) of the Administrative Code, during which time he remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

The Respondent was suspended from November 22, 2007 until December 24, 2007, on which date he was restored to duty and placed on modified assignment, having served a total of 32 days on suspension. It is further recommended that the Respondent

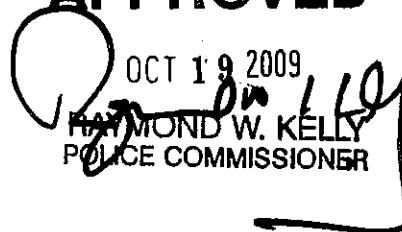
be required to forfeit the 32 days he has already served on pre-trial suspension regarding this incident and that he also forfeit 28 vacation days for a total forfeiture of 60 days.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner - Trials

APPROVED



OCT 19 2009
RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner - Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER KENNETH DOUGLAS
TAX REGISTRY NO. 906146
DISCIPLINARY CASE NOS. 82032/06 & 83759/08

The Respondent received an overall rating of 3.5 on his 2008 annual performance evaluation, 4.5 on his 2007 annual evaluation and 3.5 on his 2005 evaluation.

He has been awarded two Excellent Police Duty medals. [REDACTED]
[REDACTED]

He has a prior formal disciplinary record. In 2000, he forfeited 30 vacation days and was placed on dismissal probation after he pleaded guilty to having engaged in prohibited conduct while on duty on July 5, 1997, in that he failed to tell Department investigators that he had stopped an off-duty member of his command who he had observed driving erratically. The off-duty member was subsequently involved in a hit-and-run accident.

His one year period on dismissal probation expired on March 16, 2001.

On July 23, 2008, he was placed in Special Monitoring - Level III due to poor performance.

For your consideration.



Robert W. Vinal
Assistant Deputy Commissioner - Trials